



Non-Disclosure & White Label Partnership Agreement

THIS NON-DISCLOSURE AND WHITE LABEL PARTNERSHIP AGREEMENT (the "Agreement") is entered into as of **25th-Aug-2026** (the "Effective Date"), by and between:

- **Remote StacX Solutions Pvt. Ltd. (Foreignerds™)**, with its principal place of business at D-15, Sector 63, Noida, Gautam Buddha Nagar, UP 201301 (hereinafter referred to as the "**Disclosing Party**"), and
- **Billion Dreams United**, with its principal place of business at 548-Cha/166 Deep Nagar, Lucknow 226011 (hereinafter referred to as the "**Receiving Party**").

The Disclosing Party and Receiving Party may collectively be referred to as the "**Parties**" or individually as a "**Party**."

1. Purpose The Parties wish to explore and engage in a business relationship whereby the Disclosing Party may disclose proprietary information to the Receiving Party for evaluation, collaboration, and the provision of services including Custom Website/Software Solutions, UI/UX Design, Mobile App Development, Digital Marketing, and related IT deliverables on a white label basis (the "Purpose").

2. White Label Partnership Obligations

- 1. White Label Nature of Work:** All services, software, designs, deliverables, and documentation provided by the Receiving Party for the Disclosing Party's clients shall be strictly delivered under the Disclosing Party's brand name or the designated client brand (White Label).
- 2. Anonymity and Brand Protection:** The Receiving Party shall act strictly as an invisible back-end partner. The Receiving Party shall not, under any circumstances:
 - Disclose, advertise, or imply to any third party (including end-clients) that it is providing services to or collaborating with the Disclosing Party.
 - Include the Disclosing Party's client deliverables, code, designs, or project references in any portfolio, case study, marketing material, website, or pitch deck without express prior written consent from the Disclosing Party.
- 3. Communication Channel:** All communications with end-clients shall be conducted solely through the Disclosing Party's designated email domains,



communication channels, or representatives, unless explicitly instructed otherwise in writing.

3. Confidential Information & Definitions "Confidential Information" means any proprietary data or materials disclosed directly or indirectly, in oral, visual, electronic, or tangible form, including but not limited to:

- Technical data, architecture plans, source code, designs, mockups, algorithms, tools, and technical specifications.
- Client lists, end-client identities, project briefs, pricing structures, proposals, and business strategies.
- Any information marked as "Confidential" or which reasonably should be recognized as confidential.

Exceptions: Confidential Information does not include information that:

1. Is or becomes publicly known without breach of this Agreement.
2. Was lawfully in the Receiving Party's possession prior to disclosure.
3. Is received from a third party without breach of confidentiality.
4. Is independently developed without reference to the Disclosing Party's information.

4. Obligations of the Receiving Party The Receiving Party agrees to:

1. Maintain strict confidentiality regarding the Disclosing Party's Confidential Information and client identities.
2. Restrict access solely to employees, contractors, or agents on a need-to-know basis who are bound by confidentiality terms at least as restrictive as this Agreement.
3. Use the Confidential Information exclusively for executing the agreed Purpose.
4. Not disclose, copy, or distribute Confidential Information without prior written authorization.

5. Non-Compete, Non-Circumvention & Non-Solicitation

1. **Non-Circumvention & Non-Compete:** During this Agreement and for a period of **24 months** following termination, the Receiving Party shall not directly or indirectly contact, solicit, pitch, contract with, or perform services for any client, lead, or business partner introduced or disclosed by the Disclosing Party.
2. **Non-Solicitation:** For the term of this Agreement and for **24 months** thereafter, neither Party shall solicit, recruit, or hire any employee, contractor, or key personnel of the other Party without prior written consent.

6. Intellectual Property Rights & Work for Hire



1. **Existing IP:** All pre-existing intellectual property, trademarks, trade secrets, and proprietary tools of the Disclosing Party remain the sole property of the Disclosing Party.
2. **Deliverables & Derivative Works:** Any custom code, UI/UX designs, documentation, software, and deliverables created or developed by the Receiving Party under this collaboration shall be considered "Work Made for Hire." Full, exclusive, worldwide intellectual property rights and copyrights are assigned to the Disclosing Party immediately upon creation.
3. **Restrictions:** The Receiving Party shall not reverse engineer, decompile, resell, or reuse deliverables created for the Disclosing Party across other third-party projects.

7. Data Privacy and Security

1. The Receiving Party shall comply with all applicable data protection regulations (including GDPR, CCPA, and Indian IT laws).
2. The Receiving Party shall maintain industry-standard security practices to protect data integrity and prevent unauthorized access.
3. In the event of a suspected or confirmed security breach affecting Confidential Information, the Receiving Party must notify the Disclosing Party in writing within **24 hours**.

8. Payment Terms The fees, payment schedule, applicable taxes, invoicing requirements, payment timelines, and other commercial terms for each project shall be mutually agreed upon by the Parties and specified in the applicable Statement of Work ("SOW") executed between the Parties. Payments shall be made in accordance with the terms and conditions set forth in the respective SOW.

9. Term and Termination This Agreement shall remain valid for **24 months** from the Effective Date. Either Party may terminate this Agreement with thirty (30) days' written notice, provided that all active white label statements of work and non-circumvention/confidentiality clauses remain fully enforceable.

10. Return or Destruction of Materials Upon termination or written notice, the Receiving Party shall promptly return or permanently delete all Confidential Information, project assets, and source files, providing written certification of destruction within seven (7) business days.

11. Limitation of Liability & Indemnification

1. **Indemnification:** The Receiving Party agrees to defend, indemnify, and hold harmless the Disclosing Party against any third-party claims, liabilities, losses, or legal fees arising from breach of confidentiality, violation of white label non-circumvention terms, or IP infringement.



2. **Liability Cap:** Except for breaches of Confidentiality (Section 3/4), White Label Non-Circumvention (Section 2/5), and IP ownership (Section 6), neither Party's direct liability shall exceed three times (3X) the fees paid/payable under the applicable project statement of work.

12. Dispute Resolution, Governing Law & Jurisdiction

1. **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of India.
2. **Dispute Resolution:** Any dispute arising out of this Agreement shall first be negotiated in good faith. If unresolved within thirty (30) days, the dispute shall be referred to arbitration in accordance with the Arbitration and Conciliation Act, 1996. The seat and venue of arbitration shall be **Gautam Buddha Nagar, UP, India.**
3. **Jurisdiction:** Courts situated in **Gautam Buddha Nagar, Uttar Pradesh, India** shall have exclusive jurisdiction over any legal matters arising from this Agreement.

13. Miscellaneous

1. **Entire Agreement:** This document constitutes the entire agreement regarding confidentiality and white label engagement between the Parties.
2. **Severability:** If any provision is held invalid or unenforceable, the remaining terms shall continue in full effect.
3. **No Assignment:** Neither Party may assign or transfer rights under this Agreement without prior written consent.

Signatures

IN WITNESS WHEREOF, the Parties hereto have executed this Non-Disclosure and White Label Partnership Agreement as of the Effective Date.

Remote StacX Solutions Pvt. Ltd. (Foreignerds™)	Billion Dreams United
Signature: <u>Vivek Raina</u>	Signature: _____
Name: Vivek Raina	Name: _____



Title: CEO	Title:
Date: Aug 25 2026	Date: